

**Supreme Court of The State of New York
County of Bronx**

CAROLYN SANCHEZ,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, SGT. RYAN P. ODEA of the 52nd Precinct, P.O.
JONATHAN E. BAPTISTE of the 52nd Precinct and "New York City
Police Officers JOHN DOE 1 and JOHN DOE 2, said names being
fictitious as the actual names are not known,

Defendants.

Date Purchased

Index No.

Plaintiff(s) designate(s)

Bronx County
as the place of trial

Summons

Plaintiff(s) reside(s) at
3535 Rochambeau Ave, Apt. 1
Bronx, New York 10467.

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 29, 2024
Brooklyn, NY



THE FORZANO LAW FIRM
Attorney for the Plaintiffs
Office and Post Office Address
271 Avenue U
Brooklyn, New York 11223
(718) 372-1397

Defendant's Address:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

SGT. RYAN P. ODEA
52nd Police Precinct
3016 Webster Ave
Bronx, NY 10467

PO JONATHAN BAPTISTE
52nd Police Precinct
3016 Webster Ave
Bronx, NY 10467

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VERIFIED COMPLAINT

Plaintiff, by her attorneys, **THE FORZANO LAW FIRM**, complaining of the
Defendants herein, as and for his Verified Complaint, upon information and belief, alleges:

FIRST: That at all times hereinafter mentioned the Plaintiff, CAROYLN
SANCHEZ, was and still is a resident of the County of Bronx, City and State of New York.

SECOND: That at all times hereinafter mentioned the Defendant, THE CITY
OF NEW YORK, was and still is a Municipal Corporation duly organized and existing under and
by virtue of the laws of the State of New York.

THIRD: That at all times hereinafter mentioned the Defendant, Police Officer
and Sargent (SGT.) RYAN P. ODEA, was and still is employed as a New York City Police Officer,
working out of the 52nd Police Precinct, in the County of Bronx City and State of New York

FOURTH: That at all times hereinafter mentioned the Defendant, Police Officer
(P.O.) JONATHAN E. BAPTISTE was and still is employed as a New York City Police Officer,

working out of the 52nd Police Precinct, in the County of Bronx, City and State of New York

FIFTH: That at all times hereinafter mentioned the Defendant, approximately five (5) Police Officers hereinafter referred to as "JOHN DOE 1-2", fictitious names, real names being unknown to Plaintiff at this time, and intending to be the Police Officers who participated in this incident, were and still are employed as a New York City Police Officers, working out of the 52nd Police Precinct as well as others, in the County of Bronx, City and State of New York

SIXTH: That at all times herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of Law.

SEVENTH: That all of the causes of actions pleaded herein fall within one or more of the exceptions set forth in the New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION
FALSE ARREST & FALSE IMPRISONMENT

EIGHTH: Plaintiff repeats and realleges each and every allegation contained in paragraphs FIRST through SEVENTH, as though set forth at length herein.

NINTH: That on or about October 7, 2023, while Plaintiff, lawfully within the public "Courtyard" of her residence, 3535 Rochambeau Avenue, Bronx, New York 10467, Defendant Police Officers RYAN P. ODEA, JONATHAN E. BAPTISTE and "JOHN DOE 1-2", acting on behalf of the Defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, in the scope of their employment by the New York City Police Department, and in connection with an illegal and false arrest; without probable cause or a warrant, ordered the Plaintiff to

show identification, proceeded to then throw the Plaintiff the ground, punch the her in the face multiple times; strike the Plaintiff multiple times, place a knee the Plaintiff in the back, twist the Plaintiffs arm, smash the Plaintiffs back, face and body into the sidewalk and ground, struck the Plaintiff in the back multiple times, beat her about the head, face neck, back and body; accosted the Plaintiff, forcibly handcuffed the Plaintiff, finally, transported the Plaintiff, while handcuffed to the hospital where stitches were required, twisted the Plaintiffs arms and wrist unnaturally, mocked and insulted her in front of her family members and neighbors, arrested her, deprived her of medical attention; falsely charged her with crimes they knew she didn't commit; held her in custody for several hours during which time she was not given proper medical attention; did not mirandize her, all based on false charges without cause or justification.

TENTH: That on or about October 7, 2023, the Plaintiff was falsely arrested without a warrant by the police officers acting on behalf of the Defendant, THE CITY OF NEW YORK.

ELEVENTH: That at the aforesaid time and place, and in connection with the aforesaid arrest, the police officers handcuffed and imprisoned the Plaintiff at all of the locations referred to hereinabove, and at other locations.

TWELFTH: That the aforesaid arrest was a false arrest, and constituted false imprisonment, in that it was without probable cause, without a warrant and without just cause or justification.

THIRTEENTH: That The City of New York, its agents, servants, employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that the Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

FOURTEENTH: That the aforesaid detention constituted an unlawful detention

in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiff in their custody.

FIFTEENTH: That Plaintiff was held in Police Custody, confined against her will; knowing full well that the Plaintiff did not commit the crimes he was charged with.

SIXTEENTH: That Plaintiff was not read her Miranda Rights, and was denied the right to contact an attorney for several hours.

SEVENTEENTH: That said arrest was false, groundless and illegal in that Plaintiff committed no crime, broke no law and did no wrong, and there was no probable or just cause to believe she had.

EIGHTEENTH: That the Plaintiff's arrest took place in her private home in front of his coworkers, family, friends, neighbors, and other people in her community, and received wide notoriety in the community, and among her family and friends.

NINETEENTH: That there is a video tape of the incident, showing clearly that the Plaintiff was beaten, mocked and falsely arrested. Many people in the community have seen this video.

TWENTIETH: That due to the fact that the Plaintiff was arrested on charges related to which were false and fabricated, Plaintiff's relationship has been strained with family and friends as well as his employer, and future prospective employers.

TWENTY-FIRST: That solely as a result of this false arrest and false imprisonment, the Plaintiff's health was impaired, Plaintiff suffered great mental distress, physical injury, was caused to undergo surgery to his shoulder; suffered irreparable damage to his reputation and character, his record was permanently marred with the false and groundless notation that she was

arrested for assault, incurred substantial mental anguish, and incurred substantial and permanent psychological disturbance and embarrassment, as well as serious and permanent physical injury as hereinafter described.

TWENTY-SECOND: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

SECOND CAUSE OF ACTION
ASSAULT AND BATTERY

TWENTY-THIRD: The Plaintiff repeats reiterates and realleges each and every allegation contained in the paragraphs of the Complaint numbered FIRST through TWENTY-THIRD as if fully set forth herein at length.

TWENTY-FOURTH: That at the aforesaid times and places the Defendants physically assaulted, hit, struck, kicked, punched, beat and otherwise injured Plaintiff, as described above, causing severe physical injury and herein described.

TWENTY-FIFTH: That the aforesaid beating, striking, hitting and other physical contact was excessive, unnecessary, unjustified, and improper in that the Plaintiff offered no resistance, committed no crime or offense, posed no danger to the Defendants. The Plaintiff was suddenly and without warning, was thrown to the car, was punched in the face while on the floor and while handcuffed, thrown around like a rag doll; was unlawfully handcuffed was struck multiple times causing severe injury as a result; all while surrounded by multiple trained police officers who participated in the assault.

TWENTY-SIXTH: That the aforesaid acts constitute assault, battery and excessive use of force by the Defendants.

TWENTY-SEVENTH: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENCE and EXCESSIVE FORCE

TWENTY-EIGHTH: Plaintiff repeats and realleges each and every allegation contained in the FIRST and SECOND Causes of Action as if fully set forth at length herein.

TWENTY-NINTH: That at the times and places aforesaid, the police officers, while acting within the scope of their employment by the Defendant, THE CITY OF NEW YORK and the New York City Police Department were negligent and grossly negligent and careless in arresting and taking into custody the Plaintiff.

THIRTIETH: That at the times and places aforesaid, the police officers, while acting within the scope of their employment by the Defendant, THE CITY OF NEW YORK and the New York City Police Department were negligent and grossly negligent and careless in arresting and taking into custody the Plaintiff.

THIRTY-FIRST: That at the times and places aforesaid, the police officers, while acting within the scope of their employment by the Defendant, THE CITY OF NEW YORK and the New York City Police Department were negligent and grossly negligent and careless in the use of excessive force in arresting and taking into custody the Plaintiff.

THIRTY-SECOND: That such negligence and gross negligence consisted of, among other things, in that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss

the situation with witnesses that were available; took drastic action on an unsubstantiated hunches, without any further verification or insufficient verification when the situation was not an emergency situation; failed to take proper precautions to prevent unnecessary injury to the Plaintiff while taking Plaintiff into their custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to properly train the police officers; improperly assessed the Plaintiff; failed to properly investigate the situation, and failed to protect the Plaintiff; used excessive force in attempting to subdue, detain or arrest the Plaintiff; improperly trained police officers; allowed an unstable police officer to remain on the force after repeated complaints of unnecessary and excess force were made against them; failed to properly discipline a police officer that they knew, or should have known, was unfit to serve as a police officer; failed to properly supervise the police officers; used excessive force and were otherwise careless and negligent.

THIRTY-THIRD: That as a result of the aforesaid negligence, including excessive force, as well as the false arrest and assault and battery as alleged in the First and Second Cause of Action; the Plaintiff suffered severe injuries, including, amount others: Suffered injury to her left knee; black eye, broken nose; stitches to the face and eye; on 2-8-24 was forced to undergo surgery to the left knee; suffered torn meniscus and ACL of the left knee; suffered bruises on the shoulders, arms, eyes, hands, head, face, ribs, knees and chest;; suffered bruising throughout her body; suffered contusion and bruising to her head and eye; suffered blurry vision to the eyes; suffered difficulty breathing; was forced to be placed on highly addictive oxycodone and other medicine; was caused to have difficulty breathing, sitting and standing; suffered severe, continuous, recurring and excruciating headaches; suffered dizziness and nausea; suffered bruises, black and blues, scrapes and abrasions about the body; suffered severe injury to his eye; was caused

to be hospitalized was caused to have difficulty seeing; was caused to expend great sums for medical, hospital and other related expenses; will be required in the future to expend great sums for medical, hospital and other related expenses; has suffered great pain and distress; and was otherwise injured.

THIRTY-FOURTH: That the injuries aforesaid were due to the negligence and gross negligence of the Defendants and the Plaintiff having in no way contributed thereto.

THIRTY-FIFTH: That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FOURTH CAUSE OF ACTION
CIVIL RIGHTS VIOLATION

THIRTY-SIXTH: The Plaintiff repeats reiterates and realleges each and every allegation contained in the FIRST, SECOND and THIRD Causes of Actions as if fully set forth herein at length.

THIRTY-SEVENTH: That the aforementioned acts are the result of an actual and defacto policy of THE CITY OF NEW YORK as implemented by its public officials, police commissioners and police departments.

THIRTY-EIGHTH: That the aforesaid occurrences constitute a deprivation of Plaintiff's civil rights under Federal Law specifically 42 U.S.C. Section 1981, 1983, 1988 and the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

THIRTY-NINTH: That the Defendant's agents and employees have been

conferred with "Police Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the assault, battery and imprisonment of Plaintiff.

FORTIETH: That the aforesaid actions constitute an unlawful arrest, unlawful detention, and careless use of force, all in violation of the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS to the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

FORTY-FIRST: That solely as a result of the aforesaid violation of Plaintiff's rights of under the aforesaid Federal Statutes, the Plaintiff was caused to suffer the injuries that are hereto before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorney's fees as provided for by said statutes.

FORTY-SECOND: That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FIFTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

FORTY-THIRD: The Plaintiff repeats, reiterates and realleges each and every allegation contained in FIRST, SECOND, THIRD and FOURTH Causes of Actions as if fully set forth herein at length.

FORTY-FOURTH: That the aforesaid acts, the insults, humiliation, degradation and harassment of the Plaintiff by the police officers without justification or provocation, constitutes the tort of intentionally inflicting emotion distress.

FORTY-FIFTH: As a result, thereof, Plaintiff has been damaged in the sum of

Fifteen Million (\$15,000,000.00) Dollars.

SIXTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

FORTY-SIXTH: Plaintiff repeats and realleges each and every allegation contained in paragraphs FIRST through SEVENTY-SIXTH as though set forth at length herein.

FORTY-SEVENTH: Defendant's conduct was extreme and outrageous, taken with the intent to cause or in disregard of a substantial probability of causing emotional distress to Plaintiff, and in fact did cause severe emotional distress.

FORTY-EIGHTH: That the aforementioned events took place due to the negligent acts and / or omissions of Defendants and its agents, servants, employees and or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment, and in furtherance of their agency.

FORTY-NINTH: As a result of the assault and arrest, the Defendant's unreasonably endangered Plaintiff's life.

FIFTIETH: By reason of the Defendants' negligent conduct, Plaintiff has suffered serious emotional distress.

FIFTY-FIRST: By reason of the Defendants' negligent conduct, Plaintiff has suffered and continued to suffer injuries and damages.

FIFTY-SECOND: That the Defendants, 7-ELEVEN, INC. and ERS AW CONVENIENCE CORP. are liable for the actions of its agents and employees directly and under the doctrine of Respondant Superior.

FIFTY-THIRD: The conduct of the Defendants was in conscious disregard

of the rights and safety of others, including but not limited to, Plaintiff herein.

FIFTY-FOURTH: That solely as a result of these actions the Plaintiff's health was impaired, Plaintiff suffered great mental distress, incurred substantial mental anguish, and incurred substantial and permanent psychological disturbance and embarrassment, as well as serious and as hereinbefore described.

FIFTY-FIFTH: That as a result, the Plaintiff has been damaged in an amount to be determined at trial.

SEVENTH CAUSE OF ACTION
MALICIOUS PROSECUTION

FIFTY-SIXTH: The Plaintiff repeats reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH, FIFTH and SIXTH Causes of Action as if fully set forth herein at length.

FIFTY-SEVENTH: That the Defendants prosecuted Plaintiff on these false charges, with full knowledge that there was no basis in law for such a prosecution.

FIFTY-EIGHTH: That as a result of such malicious and groundless prosecution, Plaintiff was forced to make numerous Court appearances to Defendant against these baseless charges.

FIFTY-NINTH: That after many such appearances all charges were dismissed.

SIXTIETH: That as a result thereof, Plaintiff incurred attorney fees and other expenses in defending against these false charges.

SIXTY-FIRST: As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES

SIXTY-SECOND: The Plaintiff repeats, reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH and SEVENTH Causes of Action as if fully set forth herein at length.

SIXTY-THIRD: That the aforesaid acts by the Defendant was the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

SIXTY-FOURTH: That as a result of this wanton conduct and gross negligence, Plaintiff is entitled to recover punitive damages.

SIXTY-FIFTH: That solely by reason thereof Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

SIXTY-SIXTH: That heretofore and on December 29, 2023, the Plaintiff caused to be served upon the comptroller of the Defendant THE CITY OF NEW YORK, Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or adjusted. Said notice of claim was served within 90 days of the occurrence complained of, and this action was commenced within one year from the date of said occurrence.

WHEREFORE: The Plaintiff demands Judgment against the Defendants in an amount which is in excess of the jurisdictional limit of all lower courts that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, N.Y.
October 31, 2024

Yours, etc.



ANTHONY J. FORZANO, ESQ.

THE FORZANO LAW FIRM

Attorney for Plaintiff

Office & P.O. Address

271 Avenue U

Brooklyn, New York 11223

(718) 372 - 1397

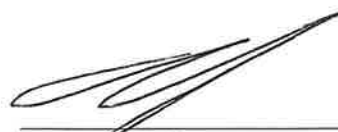
ATTORNEY VERIFICATION

**STATE OF NEW YORK,
COUNTY OF KINGS ss.:**

ANTHONY J. FORZANO, ESQ., an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true under the penalty of perjury:

1. I am the attorney for the Plaintiff CAROLYN SANCHEZ.
2. I have read the Verified Complaint and know the contents thereof to be true to my knowledge except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe to be true. My belief as to those matters therein not stated upon knowledge is based on the files maintained in my office.
3. The reason this Verification is made by your affirmant, not the Plaintiff is that the Plaintiff is not in the County in which I maintain my office.
4. Deponent further says that the source of his information and grounds of belief as to all matters not stated upon deponent's knowledge are from investigations made on behalf of said plaintiff.

Dated: Brooklyn, New York
October 31, 2024



ANTHONY J. FORZANO, ESQ.